

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noa Street-Sachs	Team: Squad #08	CCRB Case #: 201909592	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/01/2019 12:15 AM	Location of Incident: Fordham Road and Loring Place	18 Mo. SOL 12/16/2021	Precinct: 52		
Date/Time CV Reported Mon, 11/04/2019 3:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/04/2019 3:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Bryan Scheblein	26121	955457	052 PCT
3. POM Timothy Burke	17244	954584	052 PCT
4. POM Edgar Rivera	05576	955381	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Bryan Scheblein	Abuse: Police Officer Bryan Scheblein stopped § 87(2)(b)	A . Substantiated
B . POM Timothy Burke	Abuse: Police Officer Timothy Burke stopped § 87(2)(b)	B . Substantiated
C . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera stopped § 87(2)(b)	C . Substantiated
D . POM Bryan Scheblein	Abuse: Police Officer Bryan Scheblein frisked § 87(2)(b)	D . Substantiated
E . POM Bryan Scheblein	Abuse: Police Officer Bryan Scheblein searched § 87(2)(b)	E . Substantiated
F . An officer	Force: An officer used physical force against § 87(2)(b)	F . Officer(s) Unidentified
G . POM Bryan Scheblein	Discourtesy: Police Officer Bryan Scheblein spoke discourteously to § 87(2)(b)	G . Substantiated
H . POM Bryan Scheblein	Abuse: Police Officer Bryan Scheblein failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . POM Timothy Burke	Abuse: Police Officer Timothy Burke failed to provide § 87(2)(b) with a business card.	I . Substantiated
J . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera failed to provide § 87(2)(b) with a business card.	J . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 4, 2019, § 87(2)(b) filed this complaint with the CCRB via the phone.

On November 1, 2019, at approximately 12:15 a.m. in the vicinity of Fordham Road and Loring Place in the Bronx, § 87(2)(b) was walking when an unmarked black Ford blocked his path so he could not cross the street. PO Scheblein, PO Burke, and PO Rivera of the 52nd Precinct exited the vehicle and approached § 87(2)(b) (**Allegations A, B, and C: Abuse of Authority, Substantiated**). PO Scheblein then frisked and searched § 87(2)(b) (**Allegation D and E: Abuse of Authority, Substantiated**). An officer allegedly bent § 87(2)(b)'s arm back forcefully, causing swelling (**Allegation F: Force, Officer Unidentified**). PO Scheblein spoke discourteously to § 87(2)(b) while interacting with him (**Allegation G: Discourtesy, Substantiated**). PO Scheblein, PO Burke, and PO Rivera each failed to provide a business card to § 87(2)(b) (**Allegation H, I, and J: Abuse of Authority, Substantiated**).

§ 87(4-b) § 87(2)(g)

§ 87(2)(b) was not arrested or summonsed as a result of this incident. The investigation obtained body-worn camera footage pertaining to this incident (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Bryan Scheblein stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Timothy Burke stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Edgar Rivera stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Bryan Scheblein frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Bryan Scheblein searched § 87(2)(b)

It is undisputed that PO Scheblein, PO Burke, and PO Rivera stopped § 87(2)(b) and that PO Scheblein frisked and searched him.

In § 87(2)(b)'s sworn statement, he stated that on November 1, 2019 at approximately 12:15 a.m., he had been walking for approximately fifteen minutes before he arrived at Fordham Road and Loring Place in the Bronx. § 87(2)(b) did not stop or interact with anyone while walking. At this time, § 87(2)(b) carried his ID, keys, and money in his back pants pockets and his phone in his hand.

When § 87(2)(b) arrived at this intersection, an unmarked black Ford blocked his path by going the wrong direction on Loring Place. § 87(2)(b) felt he had no option but to stop when the vehicle blocked him. PO Scheblein, PO Burke, and PO Rivera exited the vehicle and stood around § 87(2)(b) one in front of him, one beside him, and one behind him. § 87(2)(b) noted that before the vehicle blocked his path, he had noticed the officers looking at him. After an officer struggled with his arm, as discussed in the below allegation section, § 87(2)(b) stopped moving. A different officer, who the investigation determined to be PO Scheblein, searched him while his arms were being held by the other two officers. PO Scheblein made contact with § 87(2)(b)'s hips and legs and entered his back pocket, removed his ID, held it for approximately three seconds, and then put it back (Board Review 02).

PO Scheblein testified that he was on routine patrol in a vehicle with PO Burke and PO Rivera

when he observed § 87(2)(b) who was approximately two lanes of traffic away from him, walking in the opposite direction of the police vehicle. The area was well lit by streetlights. Once § 87(2)(b) noticed the three uniformed officers, he looked over his shoulder three to four times. PO Scheblein continued observing § 87(2)(b) and after the second time § 87(2)(b) looked over his shoulder, PO Scheblein noticed that his hand was positioned in the center pocket of his hoodie adjusting something. § 87(2)(b)'s hand was cupped and offset from his body slightly by approximately an inch. PO Scheblein could see that his hand was holding onto something within the hoodie because there was an outline of his knuckles and fingers. It appeared to PO Scheblein that § 87(2)(b) was holding something that could be a firearm based on the way in which § 87(2)(b)'s knuckles and fingers were positioned. Specifically, the outline of § 87(2)(b)'s hand looked as if he was holding something that had a handle or was square. PO Scheblein did not remember how big this object looked but stated that it was big enough for him to notice it. Besides walking, looking over his shoulder, and adjusting what was in his center hoodie pocket, there was nothing that PO Scheblein could remember § 87(2)(b) doing.

The officers made a U-turn, stopped the car parallel to § 87(2)(b) and watched him for two light cycles while § 87(2)(b) was still walking east. § 87(2)(b) was asked where he was going, how he was doing, what his name was, and where he was coming from while the officers were inside the vehicle. PO Scheblein could not remember who asked these questions or what § 87(2)(b) said in response. PO Scheblein remembered § 87(2)(b) being “evasive” with some of the questions but did not remember how. From inside the vehicle, the officers told § 87(2)(b) to take his hands out of his pockets and § 87(2)(b) did so. The officers then exited their vehicle and told § 87(2)(b) he was being stopped. PO Scheblein observed § 87(2)(b) for a total of between thirty seconds and two minutes before stopping § 87(2)(b).

As PO Scheblein opened the door of the vehicle, he noticed § 87(2)(b) go back to his hoodie pocket and adjust something. § 87(2)(b) who had his right hand in his pocket, moved his hand from one side to the other to adjust what he was holding. At this point, § 87(2)(b) was a few feet from PO Scheblein. PO Scheblein could not remember the shape of what was in § 87(2)(b)'s pocket, how large it was, or whether it appeared to be heavy. The way in which § 87(2)(b) was holding the object meant PO Scheblein could see the outline of § 87(2)(b)'s fingers through the hoodie. It appeared the object had a flat surface and was long enough to be a subcompact or a full-size firearm. PO Scheblein could see that § 87(2)(b)'s knuckles were tensing through his hoodie pocket. When asked how PO Scheblein could determine that § 87(2)(b) was cupping something as opposed to having his fist clenched, PO Scheblein stated that he could see § 87(2)(b)'s fingers holding something. The visibility of his two fingers, his middle finger and his pointer finger indicated that § 87(2)(b) was clenching something in a cup-like fashion.

PO Scheblein noticed § 87(2)(b) put his hands back in his pockets and instructed him to remove his hands. § 87(2)(b) did so, after which PO Scheblein conducted a limited frisk of § 87(2)(b)'s center hoodie pocket. PO Scheblein could not remember what, if anything, § 87(2)(b) was doing with his body while being frisked. § 87(2)(b) had his elbows tucked by his ribs and then dropped his arms down, which led PO Scheblein to believe he might be adjusting something in his waistband through the pocket or shimmying something down in his drawers. PO Scheblein conducted another frisk, which he later stated constituted the same frisk, patting down § 87(2)(b)'s legs to make sure he did not have anything that was sitting in his waistband, which he was attempting to “wiggle” to his socks. This was something PO Scheblein had encountered previously. After the first part of the frisk, PO Scheblein believed that maybe § 87(2)(b) had something tied to his drawstrings or tucked in which he had not caught in this initial part of the frisk. When conducting the frisk, PO Scheblein did not feel anything he suspected to be a weapon, but rather “some kind of contraband.” PO Scheblein could not remember what he suspected it to be.

PO Scheblein conducted a search by reaching into § 87(2)(b)'s center hoodie pocket. PO Scheblein conducted this search to ensure that § 87(2)(b) did not have anything tied to his pants or hidden within his waistband such as a shiv, knife, or screwdriver. PO Scheblein did not remember going into any other pockets besides the center hoodie pocket. PO Scheblein recovered an object, which was not a weapon, from § 87(2)(b)'s hoodie pocket, but PO Scheblein could not remember what it was (Board Review 03).

PO Burke testified that at the time of the incident, it was dark out but the area was well lit with streetlights. He sat in the rear driver-side seat and saw § 87(2)(b) who had his hands in his hoodie pocket, walking in the same direction as the vehicle. § 87(2)(b) was approximately two car lanes away from the officers' vehicle when PO Burke first observed him. PO Burke believed § 87(2)(b) observed the officers' vehicle based on his looking at their car, turning his head away from them, pushing his hands further into his hoodie pocket, and then blading his body away from the officers. These factors, along with the area being known for a high incidence of crime, led PO Burke to believe that § 87(2)(b) had a weapon on his person. There was nothing else that led PO Burke to suspect § 87(2)(b) of being armed. The officers made a U-turn and pulled their car in front of § 87(2)(b) after which all three officers exited their vehicle simultaneously and approached § 87(2)(b).

§ 87(2)(b) stopped walking, put his hands up in the air, and took a few steps backwards. § 87(2)(b) appeared agitated, nervous, and "a little confrontational". PO Burke believed § 87(2)(b) was nervous based on him taking a few steps backwards when the officers approached him, which led him to believe § 87(2)(b) might attempt to run. PO Scheblein asked § 87(2)(b) if he had any warrants or if he was on parole, to which § 87(2)(b) answered that he did not and that he was not on parole. PO Burke remained focused on § 87(2)(b)'s hands, and did not look at the hoodie pocket area that § 87(2)(b) had previously placed his hands in. Neither PO Scheblein nor PO Rivera mentioned observing anything on § 87(2)(b)'s person at this point.

PO Burke testified that PO Scheblein frisked § 87(2)(b) by patting down the exterior of his clothing. PO Burke estimated the entire interaction to take approximately two minutes and could not estimate exactly how long it was from the time in which the officers observed § 87(2)(b) to when he was frisked. PO Burke did not see exactly where PO Scheblein patted down § 87(2)(b). Nothing was recovered or removed from § 87(2)(b)'s person. § 87(2)(b) kept his hands chest high while he was being patted down. § 87(2)(b) did not put his hands down or back into his pockets while he was being patted down (Board Review 04).

PO Rivera testified that on the date of the incident, it was dark out but that Fordham Road was well lit. PO Rivera drove westbound and saw § 87(2)(b) walking in the same direction as the vehicle. PO Rivera believed it was likely PO Scheblein who first observed § 87(2)(b) as PO Rivera was focused on driving. When § 87(2)(b) noticed the officers, he was "extremely nervous" and started adjusting his sweater pocket with both his hands inside his pocket. § 87(2)(b) was looking around and "kept messing with the pocket." When prompted by PBA representative Kate Conlon, PO Rivera stated that this indicated § 87(2)(b) might have a weapon. PO Rivera added that this was a "high-crime" area where there was significant gang activity and many shootings. Besides the fact that § 87(2)(b) was "extremely nervous," the fact that § 87(2)(b) was adjusting his sweater pocket, and the nature of the area, there was no other reason that § 87(2)(b) was stopped. From where PO Rivera was, he could not see what, if anything, appeared to be in § 87(2)(b)'s pocket. The officers stopped § 87(2)(b) approximately 30 seconds to one minute after they first observed him.

PO Rivera initially testified that PO Scheblein frisked § 87(2)(b) after PO Rivera had exited the vehicle, but later stated that the frisk could have begun while PO Rivera was still inside the vehicle. Approximately ten seconds elapsed between when PO Rivera pulled up to § 87(2)(b) and when he exited the vehicle. Within a minute of § 87(2)(b) being stopped, PO Scheblein frisked him. Once PO Rivera exited the vehicle, he could not see § 87(2)(b)'s sweatshirt pocket. PO Rivera did not know where § 87(2)(b)'s hands were but believed they were out of his pockets. PO Scheblein patted down the exterior of § 87(2)(b). PO Rivera did not remember the nature of the frisk or where PO Scheblein made contact with § 87(2)(b)'s body. PO Rivera was not aware of PO Scheblein going into any of § 87(2)(b)'s pockets. Nothing was recovered or removed from § 87(2)(b). § 87(2)(b) was not doing anything with his body besides standing while he was frisked (Board Review 05).

Body-worn camera (BWC) footage obtained from PO Scheblein, PO Burke, and PO Rivera capture this incident almost in its entirety. At 00:12 seconds of PO Burke's BWC, he exits the police vehicle and approaches § 87(2)(b). PO Scheblein exits the police vehicle and immediately frisks § 87(2)(b)'s waist area. PO Rivera is seen standing behind § 87(2)(b) while this is occurring.

At 00:30 seconds, § 87(2)(b) states "It's illegal, you know what I'm saying? I'm not gonna run." At 00:36 seconds, PO Scheblein states, "We don't care about this shit man. Just because we're in uniform. Calm down, bro. You're burying yourself for no reason. No one cares about this nonsense." PO Burke says, "You have the wrong idea about who we are, bro."

While PO Scheblein continues to frisk § 87(2)(b), § 87(2)(b) says, "I mean why do you want my name? Why are you doing this? When I asked you first. You know what I'm saying. You just ran up on me." PO Scheblein says, "Because I wanted to talk to you like a human being" and "You started to act like you were going to dip." PO Scheblein asks § 87(2)(b) "Probation? Parole? Anything like that, sir?" § 87(2)(b) says no. PO Scheblein asks § 87(2)(b) where he lives, and § 87(2)(b) says § 87(2)(b). PO Scheblein says, "Alright, you have yourself a good night." PO Burke seems to enter the police vehicle before the recording shuts off (Board Review 01).

The officers all acknowledged that they did not prepare a UF250 Report for this incident.

Per Patrol Guide Procedure 212-11, a level three stop, during which a reasonable person would not feel free to leave, may be conducted when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or misdemeanor. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct (Board Review 06).

An officer may stop and question a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. People v. DeBour, 40 N.Y. 2d 210, 233 (1976) (Board Review 08).

An individual with a weighted down jacket making a motion to blade his body and changing directions upon observing police in a high-crime location may provide officers with founded suspicion to question, but does not give a rise to the reasonable suspicion needed to justify a stop and frisk. People v. Gerard, 94 A.D. 3d 592 (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

PO Scheblein testified that § 87(2)(b) was stopped because he was looking over his shoulder and adjusting something that appeared to be a firearm in his hoodie pocket. PO Burke testified that he believed § 87(2)(b) was armed because in addition to the high-crime nature of the area, § 87(2)(b) was looking at the police vehicle, turning his head away from them, pushing his hands further into his hoodie pocket, and blading his body away from the officers. PO Rivera testified that § 87(2)(b) was stopped because in addition to the nature of the area, § 87(2)(b) was very nervous and was adjusting his sweater pocket.

§ 87(2)(g)

As such, it is therefore recommended that **Allegations A, B, and C**, be closed as **Substantiated**.

§ 87(2)(g)

According to PO Scheblein's account, § 87(2)(b) was instructed to remove his hands from his pockets two times, and § 87(2)(b) complied both times. From a few feet away, PO Scheblein believed the object § 87(2)(b) held could be a firearm but did not remember its size or weight. PO Burke testified that while focused on § 87(2)(b)'s hands, which were in the air, he did not look at the hoodie pocket area that § 87(2)(b) had previously placed his hands in. PO Rivera testified that he did not know where § 87(2)(b)'s hands were but believed they were out of his pockets.

Furthermore, while conducting the frisk, PO Scheblein did not feel anything he suspected to be a weapon but proceeded to conduct a search. § 87(2)(g)

As such, it is therefore recommended that **Allegations D and E** be closed as **Substantiated**.

Allegation (F) Force: An officer used physical force against § 87(2)(b)

§ 87(2)(g)

In § 87(2)(b)'s sworn statement, he stated that after the officers approached him, one of them grabbed his left arm and forcefully bent it back. § 87(2)(b) tried to prevent his arm from going behind him. It was as though the officer was arm wrestling with his § 87(2)(b). § 87(2)(b) described the officer who grabbed his arm as a white, 30-year old male who was approximately 6' and had a skinny build and black hair. This officer sat in the front passenger seat.

After § 87(2)(b)'s encounter with the officers, his arm was swollen and hurt increasingly. Either two or three hours afterward or the following day, § 87(2)(b) went to § 87(2)(b).

because he was not sure if his arm had been broken and he remembered his arm cracking one time during the encounter. At the hospital, § 87(2)(b) was told there was swelling. At work, several people noticed that § 87(2)(b) had swelling on his arm. As a result of this incident, § 87(2)(b) had to quit his job approximately a week before his CCRB interview because of the arm pain he was feeling at work (Board Review 02).

PO Scheblein, PO Burke, and PO Rivera all denied using physical force against § 87(2)(b)'s arm during the encounter or witnessing one another do so. None of the officers testified to have been seated in the front passenger seat of the vehicle (Board Review 03, 04, and 05). PO Scheblein testified that he sat in the rear passenger seat (Board Review 03), PO Burke testified that he sat in the rear driver-side seat (Board Review 04), and PO Rivera testified that he was the driver (Board Review 05).

§ 87(2)(a) PHL § 18(6)

PO Burke's BWC seems to capture PO Rivera making contact with § 87(2)(b)'s left arm at 00:28 seconds while PO Scheblein holds his right arm. PO Rivera's BWC captures PO Rivera holding onto § 87(2)(b) at 00:27 seconds but it is unclear where exactly he makes contact with § 87(2)(b) and what actions he takes. PO Scheblein's BWC captures PO Burke making contact with § 87(2)(b)'s left arm at 00:30 seconds. PO Burke holds § 87(2)(b)'s left wrist as § 87(2)(b) steps back. PO Burke seems to have his hand on § 87(2)(b)'s upper left arm as PO Burke and PO Scheblein speak to him (Board Review 01).

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation D** be closed as **Officer(s) Unidentified**.

Allegation (G) Discourtesy: Police Officer Bryan Scheblein spoke discourteously to § 87(2)(b)

It is undisputed that PO Scheblein used profanity when interacting with § 87(2)(b)

During his sworn statement, § 87(2)(b) did not mention an officer using profanity with him (Board Review 02).

PO Burke's body worn camera footage, found in IA #149, captures PO Scheblein stating "We don't care about this shit man. Just because we're in uniform. Calm down, bro. You're burying yourself

for no reason. No one cares about this nonsense” at 00:36 seconds (Board Review 01).

PO Scheblein testified that he did not remember if he used profanity with § 87(2)(b). After being played the above portion of footage, PO Scheblein stated that he made this statement to § 87(2)(b). PO Scheblein used profanity with § 87(2)(b) to try to relate to him and to get him to calm down for his safety. There were no other reason PO Scheblein used profanity (Board Review 03).

In DAO-DCT case number: 2017-17005, the trial commissioner held that in a violent and stressful street encounter, language which would ordinarily be inappropriate in interacting with civilians may be excused (Board Review 12).

§ 87(2)(g)

As such, it is therefore recommended that **Allegation G** be closed as **Substantiated**.

Allegation (H) Abuse of Authority: Police Officer Bryan Scheblein failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Police Officer Timothy Burke failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: Police Officer Edgar Rivera failed to provide § 87(2)(b) with a business card.

In § 87(2)(b)'s sworn statement, he stated that he did not receive a business card from any of the officers during this incident (Board Review 02).

PO Scheblein testified that after § 87(2)(b) began to walk away, the officers offered business cards to him, to which § 87(2)(b) was very “non-committal.” PO Scheblein later stated that he offered his business card to § 87(2)(b) and that § 87(2)(b) walked off and said, “Suck my dick.” PO Burke and PO Rivera also offered § 87(2)(b) their business cards. From what PO Scheblein remembered, this occurred after PO Scheblein turned off his body camera. When asked why the business cards were offered after PO Scheblein turned off his body camera, PO Scheblein said it was due to the “heightened level” of the incident and that “the stop was over when [he] turned off the camera” (Board Review 03).

PO Burke testified that he did not provide § 87(2)(b) with a business card and did not remember if PO Rivera or PO Scheblein provided him with one. PO Burke stated that according to his understanding of the Right to Know Act, officers are required to provide business cards when they conduct a stop and his failure to do so was an “oversight” (Board Review 04).

PO Rivera testified that he did not provide a business card to § 87(2)(b). PO Rivera did not know if PO Scheblein or PO Burke provided a business card to § 87(2)(b). § 87(2)(b) did not at any point refuse to take a business card from any of the officers. PO Rivera stated there was not a reason why he did not provide a business card to § 87(2)(b). When asked about his understanding of the Right to Know Act, PO Rivera stated that for a 250 stop, § 87(2)(b) should be offered a business card (Board Review 05).

PO Burke's BWC shuts off as PO Burke turns toward the police vehicle and appears to begin to enter it. PO Rivera's BWC shuts off immediately after § 87(2)(b) can be seen walking away

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the 7th CCRB complaint that § 87(2)(b) has been party to. § 87(2)(b) has made 35 allegations across these seven complaints (Board Review 15).
- PO Scheblein has been a member of service for six years and has been a subject in twelve CCRB complaints and 33 allegations. Two frisk allegations have been pleaded and substantiated against PO Scheblein (Board Review 16).
- PO Burke has been a member of service for six years and has been a subject in five CCRB complaints and eleven allegations, none of which were substantiated. § 87(2)(g)
- PO Rivera has been a member of service for six years and has been a subject in eight CCRB complaints and 24 allegations. Three allegations have been pleaded and substantiated against PO Rivera. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint (Board Review 02).
- According to the New York City Office of the Comptroller, § 87(2)(b) had not filed a Notice of Claim regarding this incident as of February 13, 2020 (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____ 8 _____

Investigator: Inv. Street-Sachs Inv. Street-Sachs 03/23/2020

CCRB Case # 201909592

	Signature	Print Title & Name	Date
Squad Leader:	<u>Ethan De Angelo</u> Signature	<u>IM Ethan De Angelo</u> Print Title & Name	<u>03/23/2020</u> Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date